

TERMS OF SERVICE AGREEMENT BETWEEN VANGUARD ENTERPRISES LLP AND STELLAR TECHNOLOGIES INC.

Between: **Vanguard Enterprises LLP** (Provider) and **Stellar Technologies Inc.** (User)

Effective Date: 2022-01-28

Termination Date: 2021-01-26

Governing Law: the laws of England and Wales

1. Term

This Agreement shall commence on the Effective Date, 2022-01-28, and shall continue until 2021-01-26, unless earlier terminated in accordance with Clause 1. Upon expiry, both Parties shall fulfil all outstanding obligations within fifteen (15) days.

2. Governing Law and Jurisdiction

This Agreement shall be governed by and construed in accordance with the laws of England and Wales. Subject to Clause 1, the courts of Mumbai shall have exclusive jurisdiction over any dispute arising out of or relating to this Agreement.

3. Audit Rights

Stellar Technologies Inc. or its authorised representative shall have the right, upon giving fifteen (15) days' written notice, to audit Vanguard Enterprises LLP's records relating to the Services and payments under this Agreement. Such audit shall be conducted during normal business hours and shall not unreasonably disrupt Vanguard Enterprises LLP's operations. The cost of the audit shall be borne by Stellar Technologies Inc., unless the audit reveals an overcharge of more than five percent (5%), in which case Vanguard Enterprises LLP shall bear the cost.

4. Scope of Services

Vanguard Enterprises LLP shall provide to Stellar Technologies Inc. the following services as detailed in Schedule A attached hereto: project management, technical implementation, quality assurance, documentation, and post-deployment support. Any modification to the scope of services must be agreed in writing by both Parties.

5. Indemnification

Vanguard Enterprises LLP shall indemnify, defend, and hold harmless Stellar Technologies Inc. and its officers, directors, employees, and agents from and against any claims, losses, damages, liabilities, and expenses (including reasonable legal fees) arising out of Vanguard Enterprises LLP's breach of this Agreement or gross negligence or wilful misconduct. The indemnifying Party shall have the right to control the defence of any such claim.

6. Amendments

No amendment to this Agreement shall be valid unless made in writing and duly signed by authorised representatives of both Parties. Any waiver of any provision of this Agreement shall be effective only if in writing and shall not be deemed a waiver of any other provision.

7. Dispute Resolution

Any dispute arising out of or in connection with this Agreement shall first be submitted to senior management of both Parties for resolution within thirty (30) days. If unresolved, disputes shall be referred to binding arbitration under the Arbitration and Conciliation Act, 1996. The seat of arbitration shall be Mumbai. The award shall be final and binding.

8. Notices

All notices under this Agreement shall be in writing and delivered to the addresses set out in Schedule B by registered post, courier, or email with read receipt. Notices shall be deemed received: (a) if by registered post, five (5) days after posting; (b) if by courier, one (1) business day after delivery; (c) if by email, on the day sent, provided no delivery failure notice is received.

9. Non-Solicitation

During the term of this Agreement and for a period of twelve (12) months after its termination, neither Party shall directly or indirectly solicit or recruit any employee or contractor of the other Party who was involved in the performance of this Agreement, without prior written consent.

10. Insurance

Vanguard Enterprises LLP shall, throughout the term of this Agreement, maintain at its own cost: (a) professional indemnity insurance of not less than Rs. 28,00,000 (Rupees Twenty-eight lakh Only) per occurrence; (b) public liability insurance of not less than Rs. 28,00,000 (Rupees Twenty-eight lakh Only) per occurrence; (c) employers' liability insurance as required by applicable law. Vanguard Enterprises LLP shall provide evidence of such insurance upon request.

11. Subcontracting

Vanguard Enterprises LLP shall not subcontract any material part of the Services without the prior written consent of Stellar Technologies Inc.. Where subcontracting is permitted, Vanguard Enterprises LLP shall remain fully responsible for the performance of the subcontractor and shall ensure the subcontractor is bound by obligations equivalent to those in Clause 6 and Clause 8.

12. Severability

If any provision of this Agreement is held to be invalid, illegal, or unenforceable, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable. The validity and enforceability of the remaining provisions shall not be affected.

13. Representations and Warranties

Each Party represents and warrants that: (a) it has full power and authority to enter into this Agreement; (b) this Agreement has been duly authorised and constitutes a valid, binding obligation; (c) the execution, delivery, and performance of this Agreement do not violate any applicable law, regulation, or third-party agreement.

14. Payment Terms

Rs. 29,00,000

lakh Only) for the Services rendered under this Agreement. Payment shall be made within thirty (30) days of receipt of an invoice. All amounts are exclusive of applicable taxes, which shall be borne by Stellar Technologies Inc.. Late payments shall attract interest at the rate of eighteen percent (18%) per annum.

IN WITNESS WHEREOF

Provider

Vanguard Enterprises LLP

Signature: _____

Name: _____

Title: _____

Date: _____

User

Stellar Technologies Inc.

Signature: _____

Name: _____

Title: _____

Date: _____